

24SMCV04634 24SMCV04634

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CASE NAME: Brown, v. Loza-Exley, et al.

CASE NO.: 24SMCV04634

MOTION: Motion to Strike

HEARING DATE: 8/6/2026

LEGAL STANDARD

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike,

courts do not read allegations in isolation. [Citation.]” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (Coll. Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. Civil Code section 3294 defines malice as conduct “intended by the defendant to cause injury to the plaintiff,” or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Id.) Despicable is a powerful term used to describe circumstances that are “base,” “vile,” or “contemptible.” (Coll. Hosp., supra, 9 Cal.4th at 726.) The statute “plainly indicates that absent an intent to injure the plaintiff, “malice” requires more than a “willful and conscious” disregard of the plaintiffs’ interests. The additional component of “despicable conduct” must be found.” (Id.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (Grieves v. Superior Ct. (1984) 157 Cal.App.3d 159, 166, fn. omitted.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and, how, that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendants Juliana

Loza-Exley and Ingrid Juliana van Vuerings move to strike the request for punitive damages in Plaintiff Cassandra Brown’s complaint.

The Complaint alleges two causes of action for general negligence and motor vehicle negligence. On January 24, 2023, at the intersection of La Cienega Blvd and Clifton Way, Defendant Loza-Exley operated their vehicle negligently and carelessly, and proximately

caused property damage and personal injury to Plaintiff. In addition, by fleeing the scene in violation of CVC § 20001, Defendant Loza-Exley further demonstrated negligence, as this act not only evaded responsibility but also heightened the risk of harm to the injured parties. The vehicle is registered under Van Vuerings's name. She knew or should have known that Loza-Exley was incompetent or unfit to drive the vehicle, but nonetheless, permitted Loza-Exley to drive the vehicle. Loza-Exley's incompetence or unfitness to drive was a substantial factor in causing harm to Plaintiff.

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Complaint fails to allege specific facts of malice, oppression or fraud against either defendant. The above facts do not state that Defendants intended to cause harm to Plaintiff. The facts neither show despicable conduct, nor reveal that any of the alleged conduct was carried out with a willful and conscious disregard of the rights or safety of Plaintiff. The facts only sound in mere negligence. In opposition, Plaintiff cites the fact that Loza-Exley fled the scene of the collision, which might show disregard of the rights or safety of Plaintiff. However, Plaintiff does not allege how Loza-Exley's flight independently caused or exasperated Plaintiff's injuries from the collision. Without causation of damages, the alleged hit-and-run cannot support the imposition of punitive damages. (See *Brooks v. E.J. Willig Truck Transp. Co.* (1953) 40 Cal.2d 669, 678-679 [a hit-and-run may constitute a tort if the abandonment itself causes plaintiff further injury beyond those caused by the collision]; *Fassberg Construction Co. v. Housing Authority of City of Los Angeles* (2007) 152 Cal.App.4th 720, 758 [punitive damages cannot be awarded without actual damages].) Moreover, no facts of malice, oppression or fraud supporting the imposition of punitive damages are proffered against van Vuerings.

Accordingly,

the motion to strike is GRANTED. Leave to amend will only be granted if Plaintiff proffers additional facts which show a reasonable possibility of successful amendment, i.e., that Defendants engaged in despicable conduct, in conscious disregard of the rights or safety of Plaintiff, which actually caused damages.